

2.	30-2024-01424411-CU-PA-CJC Avila vs. Peterson	Before the Court is a Renewed Motion to Compel Mental Examination brought by defendants James Edward Peterson and Christine Peterson (collectively, “Defendants”) against plaintiff Perry Avila (“Plaintiff”). ROA 140. The Court notes that Defendants’ renewed Motion to Compel Mental Examination follows the Court’s prior denial, on procedural grounds, of Defendants’ earlier motion seeking to compel Plaintiff to submit to a mental examination. ROA 137. Defendants now seek an order, pursuant to California Code of Civil Procedure Section 2032.020, compelling Plaintiff Avila to attend and complete a mental examination. ROA 140. Defendants further assert that new or different facts and evidence warrant renewal of their request under Code of Civil Procedure section 1008, subdivision (b). <i>Id.</i> Plaintiff requests that the Court deny the Defendants’ Renewed Motion. ROA 150. I. Motions for Reconsideration Under California Code of Civil Procedure Section 1008, a party affected by a Court’s order “may, within [ten] 10 days after service upon the party of written notice of entry of the order,” move the court to reconsider, modify, or revoke the court’s prior order. Cal. Civ. Proc. Code § 1008(a). The moving party’s application must be accompanied by an affidavit stating “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances or law are claimed to be shown.” <i>Id.</i> Importantly, applicants for reconsideration are subject to a strict standard of diligence in ensuring the new or different facts, circumstances, or law were <i>not known or available</i> at the time of the original application. <i>See Garcia v. Hejmadi</i> 58 Cal. App. 4th 674, 690 (1997). Courts will <i>not</i> consider new or different facts, circumstances, or law presented in an application for reconsideration that the court finds were available to the applicant at the time of the <i>original application</i> in controversy. <i>See Id.</i> (finding that the applicant
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		failed to meet the requirements of Section 1008 by presenting facts on reconsideration that were available at the time of the original application, without offering any justification for its failure to present them earlier). Defendants argue that their renewed motion is proper because the grounds for prior denial were procedural and Defendants submit new facts or circumstances in their revised moving papers. ROA 140 p. 17, ROA 137. Defendants contend their revised declarations constitute a new or different circumstance under California Code of Civil Procedure Section 1008 because their declarations present facts that Defendants cured the procedural deficiencies identified by the Court in its prior order. <i>See</i> ROA 140. The Court is not persuaded by the Defendants' argument. Defendants identify no genuinely new or different facts, circumstances, or <i>law</i> that could not, through the exercise of reasonable diligence, have been presented at the time of the original motion. ROA 140. Defendants cannot satisfy the requirements of Code of Civil Procedure section 1008 by simply curing deficiencies in their prior submissions and presenting the corrected information as <i>new</i> facts or circumstances warranting a renewal. Consequently, the Court DENIES Defendant's motion. Plaintiff shall give notice.
3.	30-2025-01525674-CU-NP-WJC Lister vs. Valley Post-Acute And Rehab LLC	Before the Court are eight (8) motions for sanctions ("Motions") brought by plaintiff Kathleen Rose Lister, by and through her successor in interest, Hattie Davis ("Plaintiff") against defendant Valley Post-Acute and Rehab, LLC ("Defendant"). ROAs 129, 136, 137, 138, 139, 140, 141, 150. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 128(a)(5), 2023.010, 2023.030, 2025.450(h), 2030.290(c), 2031.300(c), and 2033.280, imposing monetary, issue, and evidentiary sanctions upon Defendant and Defendant's counsel for Defendant's failure to comply with the Court's April 21, 2026, order to serve